

24SMCV03326 24SMCV03326

County: los-angeles

Division: Civil Law and Motion

Department: I

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This is an application to continue the trial. Lead trial counsel for plaintiff, by odd coincidence, is also lead counsel for a different plaintiff in a different case set to go to trial on August 17. That case has completed its FSC and the parties are all in agreement that they are ready, and the court at the FSC deemed the case ready for trial. Accordingly, as counsel now confirms, what was only a possibility when the prior application to continue the trial was made is now almost certain. The court understands the point.

Here is what the court will do. The court will CONTINUE this application to August 17, 2026. One never knows, lightning might strike and the other case might settle. But the court well understands that it is not fair to force the parties to do all of the FSC work on what is now something that is very unlikely. If lightning does strike, the court will discuss with counsel the appropriate action to take. The court understands that counsel is not excited about putting in the significant effort needed to do the FSC work for this case (especially because defendant is not represented, so likely 100% of the effort will fall on plaintiff) while at the same time preparing for the other trial. The court would not expect counsel to have to do that, so if in fact the other case settles, the court will work with the parties to figure out what is appropriate given that plaintiff's counsel in the instant case will stand down between now and August 17. What this means is that if the case goes forward, the court will work with counsel so as to get something realistic for the FSC materials and counsel need not worry about being sanctioned for not double-tracking. The court is not expecting anyone to work on the FSC between now and then, and if that means

that there is a delay in getting FSC materials in the event that the trial can go forward as scheduled, the court will take that into account.